IN THE NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH

C.P.(CAA)NO.32/BB/2017
U/S 230-232 of the Companies Act, 2013

IN THE MATTER OF
MICROFIN PRIVATE LIMITED
Order Delivered on: 28TH July, 2017

Coram: Hon'ble Shri Ratakonda Murali, Member (Judicial)
Hon'ble Shri Ashok Kumar Mishra, Member (Technical)

Microfin Private Limited,
New No.49 (Old No.725),
46th Cross, 8th Block, Jayanagar,
Bengaluru- 560071 - PETITIONER/TRANSFEROR COMPANY

For the Petitioner(s): Shri. Rayappa Y.Hadagali, Advocate,
Dua Associates,No.130/1, 2nd Floor Ulsoor Road,
Bengaluru 560042.

Per: **Hon'ble Shri Ashok Kumar Mishra, Member (Technical)** - Author

O R D E R

This Company Petition filed by the Petitioner Company is coming before us for considering the Company Petition for approving the Scheme and for fixing date for hearing of the main Company Petition as well as for a direction in relation to publication in Newspaper to be effected and notices to be issued to the authorities concerned in relation to date of hearing of the Petition.

From the records, it is seen that the First Motion seeking dispensation with convening of meeting of Shareholders, Secured and Unsecured Creditors was filed before the Tribunal and was numbered as C.A (CAA) 43/BB/2017. Accordingly, Meetings were dispensed with.

The Counsel for the Petitioner Company is directed to comply the provisions as contemplated under Section 230-232 and other relevant provisions of the Companies Act, 2013 read with Companies (Compromise, Arrangements and Amalgamation) Rules, 2016 for the purpose mentioned above, it is now hereby ordered as follows:-

i. The date of hearing of the Company Petition filed by the Petitioner Company for the approval of the Scheme is fixed on **7th September, 2017**.

ii. Notice of the hearing shall be advertised in the Newspapers namely, **The New Indian Express** (English Daily) Bengaluru Edition and **"Kannada Prabha"** (Kannada Daily) Bengaluru Edition notifying the date of hearing as **7th September, 2017** to be published on or before **28th August, 2017.**

iii. The Registry is directed to prepare notices and Counsel for the Petitioner Company is directed to collect the notices from the Registry and send the notices on the following Authorities namely, (a) Regional Director, South-Eastern Region, Ministry of Corporate Affairs (b) Registrar of Companies, Karnataka (c) The Official Liquidator (d) Income Tax Department, (e) The Reserve Bank of India, at least 30 days before the date fixed for hearing of the above Company Petition.

28/7/17

(ASHOK KUMAR MISHRA)
MEMBER, TECHNICAL

28/7/17

(RATAKONDA MURALI)
MEMBER, JUDICIAL